

October 8, 2025, before filing his complaint in December. The complaint asserts nine Labor Code violations as a representative PAGA action and has not been deemed complex.

2. Jacobs Class Action

Jacobs v. TransPak, Inc. is a class action filed on December 29, 2022, in Santa Clara County Superior Court, Case No. 22CV409235. (Washington Decl., ¶¶ 9–21, Ex. C–M.) Plaintiff Macie Jacobs alleges nine Labor Code violations, and the Court deemed the action complex on January 11, 2023. On June 26, 2025, the Court granted TransPak’s motion to compel arbitration, dismissed the class claims, and stayed the action pending arbitration of Jacobs’s individual claims. (*Id.* at ¶ 18, Ex. L.) Jacobs has demanded arbitration before the American Arbitration Association, with an arbitration hearing set for December 1–4, 2026. (*Id.* at ¶ 19, Ex. M.) A further case management conference is set for January 13, 2027. (*Id.* at ¶¶ 19–20, Ex. M.)

3. Velazquez PAGA Action

Velazquez v. TransPak, Inc. is a PAGA representative action filed on August 11, 2023, in Alameda County Superior Court, Case No. 23CV040507. (Washington Decl., ¶¶ 22–40, Ex. N–Z, 1–4.) The Alameda court deemed the action non-complex on September 12, 2023. (*Id.* at ¶ 23, Ex. O.) The court denied TransPak’s motion to compel arbitration on February 4, 2025. (*Id.* at ¶ 36, Ex. 2.) TransPak filed a notice of appeal from that ruling on February 25, 2025. (*Id.* at ¶ 37, Ex. 3.) Trial is set for June 7, 2027. (*Id.* at ¶ 40.)

4. Viloria Class and PAGA Action

Viloria v. TransPak, Inc. is a class and PAGA representative action filed on September 5, 2023, in San Joaquin Superior Court, Case No. STK-CV-UOE-2023-9508. (Washington Decl., ¶¶ 41–50, Ex. 5–11.) The action is labeled complex, and an alternative dispute resolution hearing is set for April 23, 2026. (*Id.* at ¶¶ 44, 48, Ex. 8.)

5. Gomez Class and PAGA Action

Gomez v. TransPak, Inc. is a class and PAGA representative action filed on February 20, 2024, in Santa Clara County Superior Court. Case No. 24CV431223. (Washington Decl., ¶¶ 51–57, Ex. 12–16.) The action has been deemed complex. (*Id.* at ¶ 52, Ex. 13.)

II. Legal Standard

California Rules of Court, rules 3.501 through 3.550 provide for the coordination of complex actions. Rule 3.400(a) defines a “complex case” as “an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel.” In deciding whether an action is a complex case under Rule 3.400(a), the court must consider, among other things, whether the action is likely to involve:

- (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve;
- (2) Management of a large number of witnesses or a substantial amount of documentary evidence;
- (3) Management of a large number of separately represented parties;
- (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or
- (5) Substantial postjudgment judicial supervision.

(California Rules of Court, rule 3.400(b).)

“Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account” the following factors: “whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.” (Code Civ. Proc., § 404.1 (“Section 404.1”); see also California Rules of Court, rule 3.521 [setting forth the requirements for a petition for coordination].)